



KEMENTERIAN LUAR NEGERI

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PRIVILEGED INSTRUCTIONS

**Ministry of Foreign Affairs
BRUNEI DARUSSALAM**



Privileged Instructions

Fundamental Principles:

- Restore peace and tranquility within the Southeast Asian region.
- Protect and maintain rights of sovereignty in accordance with international law and established international conventions, to include the United Nations Convention on the Law of the Sea (UNCLOS).

Desired End State(s):

- Peaceful resolution of South China Sea (SCS) sovereignty issues through bilateral efforts, while using multilateral efforts to improve conduct and conditions in the SCS.
- Increased cooperation at all levels between the nations of the SCS and the People's Republic of China.
- UN Convention on the Law of the Sea (UNCLOS) tenets and obligations observed, respected, and adhered to by all nations; specifically the tenets under Article 87, Freedom of the High Seas, as regards Freedom of Navigation and Right of Innocent Passage (Articles 17, 18 & 19).
- Increased joint commercial ventures within the SCS.

Principle Negotiation Positions

- Each nation must respect the sovereignty of all recognized nations and their rights regarding coastal regions, maritime and Exclusive Economic Zones, and verifiable claims to islands.
- The threat of, or use of, force by any nation is counterproductive and must be avoided at all costs. However, every nation has the right to protect its citizens and territory against any, and all, legitimate threats.
- Maritime and territorial claims must be resolved by peaceful means, never through military actions, economic, or political coercion.
- We will compartmentalize our current differences with Beijing so as not to adversely affect these talks. We must maintain the commercial vibrancy of our economy while diversifying it to be less dependent on energy revenues.
- Our relations with nations external to ASEAN will not trump our support for the Philippines and Vietnam. China's claims fail to meet the definitions of land formations under UNCLOS. So our position regarding legally verifiable claims remains consistent with the PCA award and the precedent it sets. Support the concepts behind UNCLOS, and other international norms, without unnecessarily antagonizing China.
- Achieving multilateral solutions between nations, with valid SCS claims, is the preferred method of establishing sustainable solutions. Involving third parties as "trusted partners" can play an important role in achieving these solutions.

- All external negotiating partners – India, Japan, and the United States – should first consult with the ASEAN nations involved as soon as possible. It is unacceptable and disrespectful for these external nations to proceed in any other manner.
- If a peaceful resolution is achieved, ensure that the maintenance of any settlements, and agreements thereof, are codified through the creation of a new SCS dialogue system within ASEAN.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

General: Participants have agreed to pursue a two-step process in addressing SCS issues. First, specific issues should be addressed bilaterally by delegations directly concerned through peaceful dialog and negotiation. Second, such negotiations should be resolved in accordance with UNCLOS and the rules and principles of international law.

China: While China has agreed to participate in these negotiations, it is not interested in a solution that impinges on its declared ten-dashed line boundary. The PCA award denied the legitimacy of this position and thus it remains unacceptable. We expect the Chinese will talk about problems that exist but it is unlikely that they will be open to proposals or compromises that might lead to lasting solutions. Chinese leaders play for time rather than compromise, for they see time as on their side. You can accept that China will prefer bilateral negotiations vice multilateral. Given their powerful position, it seems unrealistic to press them into multilateral negotiations but if you are able consider it an achievement.

On conduct issues – as opposed to sovereignty/claims issues - note that multilateral solutions are the soundest means of ensuring regional peace, security, and prosperity. Express to them that the maintenance of regional stability and security is of paramount importance, certainly to Beijing. Try to seek what short-term measures they are willing to accept short of an overarching solution. Express in firm terms that no nation can, or will, be permitted to impose its will on any other nation. Remind Beijing that it has signed the ASEAN Treaty of Amity and Cooperation (TAC) and the 2002 SCS Declaration of Conduct that commit it to the peaceful resolution of all problems with ASEAN member nations. Restate that a peaceful resolution to all claims within the SCS is of paramount importance to enable progress in energy exploration/exploitation. Our current cooperative exploitation of energy resources will not occur under a constant threat of military incursions and assaults.

The Philippines, and Vietnam: Reassure both that we are supportive of their positions against China's ten-dashed line claim, insofar as their claims can be verified under UNCLOS. On issues, other than sovereignty and claims, we are open to building multilateral positions within these negotiations that might allow all delegations to unite pressure on the Chinese delegation with one voice. Enquire about the possibility of discussing specific confidence building measures, such as suspension of military patrols, increased economic cooperation, and mutual respect for EEZs. Re-emphasize that ASEAN remains a uniquely valuable organization that has achieved great things over its history, and of their valuable place within the Association.

The Philippines and Vietnam have continued to be frustrated at ASEAN's inability to articulate a stated joint position on the SCS disputes. They see Chinese influence on other member states as the driving cause. They view the organization as being powerless to moderate, or alter, China's overbearing behavior. Though we prefer to handle sovereignty and claims issue bilaterally, we must convince the Philippines and Vietnam that long-run multilateralism is the best method of dealing with the bulk of SCS issues. A combination of bilateral and multilateral actions and agreements along

with bilateral and multilateral alliances, with external powers, can bring security and regional stability. Enlist Indonesia and Malaysia in helping to reinforce the claims of the Philippines and Vietnam, to the benefit of our own positions.

Indonesia and Malaysia: As a founding members of ASEAN, it is undoubtedly incumbent upon them to convince all parties that regional multilateralism is a sound, effective method for the maintenance of regional peace and the development of a mutually supportive regional community. Failure to do so could begin the process of the unraveling of the ASEAN concept and its accomplishments to date. Emphasize support for ASEAN as the natural hub for regional problem solving. However, multilateralism will not always work in every situation. The unique make-up of ASEAN, as a group of disparate smaller nations (in comparison to China), have divergent philosophies and national interests. Inevitably, this leads to weakness in terms of unity of effort against China. Therefore, suggest their role should be to bring unqualified support to the Philippines and Vietnam. Suggest that they should use their cordial relations with Beijing to elicit commitments for an immediate reduction in tensions through the confidence building measures that we propose to all parties.

United States: In your talks with the US delegation, thank them for their continued commitment to the region, their support for ASEAN and its member states, and for our revitalized partnership. Emphasize that they are essential in supporting the Philippines and Vietnam in their own talks with China, but that assumes that their positions support our own. To ensure that we send the same message to China, and that we understand where China is on issues, meet with the US delegation on a regular basis to compare notes and adjust positions and strategies. Failing that, seek to discover what their negotiation strategy is and if it harmonizes with ours support it, if not, seek changes to it that we can live with. Seek assurances from the US delegation that Washington's previous tariff/trade war with China will not brought into these talks. It poses no relevancy to the ASEAN nations nor to the SCS situation in particular.

Regarding their talks with the Chinese delegation, emphasize that the US should point out the continued importance of ASEAN as the primary multilateral regional venue for the discussion and resolution of all regional problems. Determine what actions, if any, within the SCS might provoke a US military response in support of their mutual defense treaty with the Philippines. Though we agree with the US's stance on the right of innocent passage and freedom of navigation emphasize the overarching need for restraint in order to preserve peace and stability in the SCS.

India: Emphasize to the Indian delegation that they should support us as the lead for these negotiations, given our excellent relations with all parties, especially as concerns China. As with your talks with the US, emphasize the need for a united effort with their support. Seek to underpin their economic position by offering the possibility of significantly increased trade with ASEAN members.

Japan: In your talks with the Japanese delegation, seek to enlist their support for our lead, as laid out above. As with your talks with the US and India, emphasize the need for a united effort with their support. Seek additional Japanese pressure on China to temporize its behavior by emphasizing their increased and inextricable economic ties. Japan is in a unique position of influence in this regard. Trade and investment ties let to the de-escalation of their tensions over the Senkakus. Seek to understand their position with regard to the various claims by China, the Philippines, and Vietnam, and what they see as an equitable solution.